

25SMCV00852 25SMCV00852

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C09%2F10%2F2026

Source SHA-256: a5eee5bdd877a7cad3ee669ffc810383775528a11ae17a378bcdd53393596079

Case Number: 25SMCV00852 Hearing Date: September 10, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

10, 2026

CASE NUMBER

25SMCV00852

MOTION

Motion for Order Authorizing Substituted or Alternative

Service of Deposition Subpoena for Production of Business Records to Nonparty

Jose Flores

MOVING PARTY

Defendant Deividas Strole

OPPOSING PARTY

none

MOTION

This case arises from a dispute between employer and employees in which the employees are alleged to have engaged in a false work order scheme to defraud their employer.

On February 18, 2025, Plaintiff Roque & Mark Co., Inc. ("Plaintiff" or "Roque") brought suit against Defendants Deividas Strole ("Strole"); Kestutis Dvarvydis (aka Kestas Dvarvydis) ("Dvarvydis"); and Tomas Chevykinas ("Chevykinas") (together, "Defendants") alleging seven causes of action for (1) fraud; (2) conversion; (3) breach of fiduciary duty; (4) aiding and abetting; (5) breach of fiduciary duty; (6) open book account; and (7) declaratory relief.

Defendant Strole moves for an order authorizing substituted or alternative service of a deposition subpoena for production of business records to nonparty Jose Flores. The motion is unopposed.

ANALYSIS

Code of Civil Procedure section 2020.220 requires personal service of a deposition subpoena on a nonparty.

Further, as Defendant acknowledges, "a deposition subpoena that has not been personally served in compliance with section 2020.220 imposes no obligations on a nonparty deponent." (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1288.)

Yet, Defendant provides no legal authority for the Court to deviate from the applicable service provision. "In general, the moving party must carry the initial burden of informing its opponent and the court of the specific basis for its motion. If the rule were otherwise, then the party opposing the motion would have to try to guess, and then refute, every possible basis for the motion, which would always be inefficient and would often produce arbitrary results." (People v. Williams (1999) 20 Cal.4th 119, 129, citation omitted.) To wit, the California Rules of Court provides in relevant part: "The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied

on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, rule 3.1113(b), emphasis added; see also Chavez v. Netflix, Inc. (2008) 162 Cal.App.4th 43, 52 [trial court was justified in denying the motion on procedural grounds due to deficient memorandum in support of motion].)

Additionally, the Second District Court of Appeal in affirming the trial court's denial of post-trial motions on procedural grounds, observed: "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (Quantum Cooking Concepts, Inc. v. LV Associates, Inc. (2011) 197 Cal.App.4th 927, 934.)

Instead of providing the Court any legal authority for the relief Defendant seeks, Defendant merely argues that Defendant has been unsuccessful at personally serving Mr. Flores at an address confirmed to be his home, despite multiple attempts. That is insufficient.

CONCLUSION AND ORDERS

Finding Defendant has not provided legal authority for the relief sought, the Court denies Defendant's motion without prejudice.

Defendant shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED:
September 10, 2026 ____/s/____

Michael E. Whitaker

Judge
of the Superior Court